

IN THE SENATE

SENATE CONCURRENT RESOLUTION NO. 128

BY STATE AFFAIRS COMMITTEE

A CONCURRENT RESOLUTION

STATING FINDINGS OF THE LEGISLATURE AND APPROVING ALL TEMPORARY AND PENDING
RULES SUBMITTED TO THE LEGISLATURE FOR REVIEW DURING THE 2026 LEGISLA-
TIVE SESSION, WITH EXCEPTIONS.

Be It Resolved by the Legislature of the State of Idaho:

WHEREAS, pursuant to Section 67-5291, Idaho Code, standing committees
of the Legislature shall review any temporary or pending rule that is ger-
mane to its committee and has been published in the Idaho Administrative Bul-
letin; and

WHEREAS, temporary rules that are not approved by a concurrent resolu-
tion shall expire by their own terms or at adjournment sine die of the next
succeeding regular session of the Legislature, whichever date is earlier;
and

WHEREAS, pending rules that are not approved by a concurrent resolution
shall expire upon adjournment sine die of the legislative session during
which the agency submits the pending rules to the Legislature for review; and

WHEREAS, the Legislature may reject a rule, in whole or in part, when the
Legislature determines that the rule, or part of the rule, is not consistent
with the legislative intent of the statute that the rule was written to in-
terpret, prescribe, implement, or enforce; and

WHEREAS, the Legislature reviewed pending and temporary rules from the
following agencies:

- (1) Department of Administration;
- (2) Department of Agriculture;
- (3) Department of Commerce;
- (4) Department of Environmental Quality;
- (5) Department of Fish and Game;
- (6) Department of Health and Welfare;
- (7) Department of Insurance;
- (8) Department of Lands;
- (9) Department of Parks and Recreation;
- (10) Department of Water Resources;
- (11) Division of Career Technical Education;
- (12) Division of Occupational and Professional Licenses;
- (13) Division of Veterans Services;
- (14) Idaho Commission for the Blind and Visually Impaired;
- (15) Idaho Commission on Aging;
- (16) Idaho Hop Growers' Commission;
- (17) Idaho Public Safety Communications Commission;
- (18) Idaho Public Utilities Commission;
- (19) Idaho State Lottery;
- (20) Idaho State Police;
- (21) Idaho Transportation Department;

- (22) Office of Administrative Hearings;
- (23) Secretary of State;
- (24) Sexual Offender Management Board;
- (25) State Board of Education; and
- (26) State Tax Commission; and

WHEREAS, it is the finding of the Legislature that certain rule dockets of the Department of Agriculture, Department of Environmental Quality, Department of Fish and Game, Department of Health and Welfare, Department of Parks and Recreation, Department of Water Resources, Division of Occupational and Professional Licenses, Idaho Public Safety Communications Commission, Idaho Transportation Department, Office of Administrative Hearings, and Sexual Offender Management Board are not consistent with legislative intent; and

WHEREAS, the Senate Commerce and Human Resources Committee approved the pending rule in Docket No. 24-3950-2501, IDAPA 24.39.50, Division of Occupational and Professional Licenses, Rules of the Public Works Contractors License Board, to have an effective date of sine die of the Second Regular Session of the Sixty-eighth Idaho Legislature, and did not hear the docket's corresponding temporary rule, which was therefore not approved; and

WHEREAS, the House Business Committee approved the pending rule in Docket No. 24-3950-2501, IDAPA 24.39.50, Division of Occupational and Professional Licenses, Rules of the Public Works Contractors License Board, to have an effective date of July 1, 2026, and approved the temporary rule in that docket, thereby extending the docket's corresponding temporary rule to expire upon the pending rule's effective date of July 1, 2026; and

WHEREAS, the Senate and House Health and Welfare Committees did not review, and therefore did not approve, the following pending rules at the request of the Department of Health and Welfare, who expressed intent to allow the rules to expire upon sine die:

(1) IDAPA 16.06.03, Department of Health and Welfare, Rules for Daycare Licensing, Docket No. 16-0603-2501, the entire docket; and

(2) IDAPA 16.06.12, Department of Health and Welfare, Rules for the Idaho Child Care Program, Docket No. 16-0612-2501, the entire docket.

NOW, THEREFORE, BE IT RESOLVED by the members of the Second Regular Session of the Sixty-eighth Idaho Legislature, the Senate and the House of Representatives concurring therein, that all temporary and pending rules adopted by state agencies pursuant to the Administrative Procedure Act and submitted to the Legislature through the Office of the Administrative Rules Coordinator for review during the Second Regular Session of the Sixty-eighth Idaho Legislature, be, and the same are hereby approved, with the exception of the following enumerated rules, which are hereby rejected, not approved, and declared null, void, and of no force and effect upon adjournment sine die of the Second Regular Session of the Sixty-eighth Idaho Legislature:

(1) IDAPA 02.06.01, Department of Agriculture, Rules Governing the Production and Distribution of Seed, Docket No. 02-0601-2501, Section 112., new Subsections .01, .02, .03, .04, and .05, only;

(2) IDAPA 13.01.04, Department of Fish and Game, Rules Governing Licensing, Docket No. 13-0104-2401, Section 700., Subsection 02., and Section 800., Subsection 02., only;

1 (3) IDAPA 13.01.08, Department of Fish and Game, Rules Governing Tak-
 2 ing of Big Game Animals, Docket No. 13-0108-2401, Section 410., Subsection
 3 04.g. and Subsection 04.h., only;

4 (4) IDAPA 15.06.01, Idaho Military Division, Rules Governing the Idaho
 5 Public Safety Communications Commission, Docket No. 15-0601-2501, the en-
 6 tire docket;

7 (5) IDAPA 16.06.03, Department of Health and Welfare, Rules for Daycare
 8 Licensing, Docket No. 16-0603-2501, the entire docket, at the request of the
 9 Department of Health and Welfare;

10 (6) IDAPA 16.06.12, Department of Health and Welfare, Rules for the
 11 Idaho Child Care Program, Docket No. 16-0612-2501, the entire docket, at the
 12 request of the Department of Health and Welfare;

13 (7) IDAPA 24.05.01, Division of Occupational and Professional Li-
 14 censes, Rules of the Board of Drinking Water and Wastewater Professionals,
 15 Docket No. 24-0501-2501, Section 400., only;

16 (8) IDAPA 24.06.01, Division of Occupational and Professional Li-
 17 censes, Rules for the Licensure of Occupational Therapists and Occupational
 18 Therapy Assistants, Docket No. 24-0601-2501, the entire docket;

19 (9) IDAPA 24.13.01, Division of Occupational and Professional Li-
 20 censes, Rules Governing the Physical Therapy Licensure Board, Docket No.
 21 24-1301-2501, the entire docket;

22 (10) IDAPA 24.39.30, Division of Occupational and Professional Li-
 23 censes, Rules of Building Safety, Docket No. 24-3930-2502, the entire
 24 docket;

25 (11) IDAPA 24.39.50, Division of Occupational and Professional Li-
 26 censes, Rules of the Public Works Contractors License Board, Docket No.
 27 24-3950-2501, the entire temporary rule docket;

28 (12) IDAPA 26.01.20, Department of Parks and Recreation, Rules Govern-
 29 ing the Administration of Park and Recreation Areas and Facilities, Docket
 30 No. 26-0120-2501, Section 075. and Section 250., only;

31 (13) IDAPA 37.03.07, Idaho Department of Water Resources, Stream Chan-
 32 nel Alteration Rules, Docket No. 37-0307-2501, the entire docket;

33 (14) IDAPA 39.02.60, Idaho Transportation Department, Rules Governing
 34 License Plate Provisions, Docket No. 39-0260-2501, Section 012., Subsec-
 35 tion 03., only;

36 (15) IDAPA 57.01.01, Sexual Offender Management Board, Rules of the
 37 Sexual Offender Management Board, Docket No. 57-0101-2502, the entire
 38 docket;

39 (16) IDAPA 58.01.11, Department of Environmental Quality, Ground Water
 40 Quality Rules, Docket No. 58-0111-2501, Section 003. and Section 200., Sub-
 41 section 01.a., only; and

42 (17) IDAPA 62.01.01, Office of Administrative Hearings, Idaho Rules of
 43 Administrative Procedure, Docket No. 62-0101-2501, Section 011., Section
 44 012., and Section 515., only.

45 BE IT FURTHER RESOLVED that, except as otherwise provided in this con-
 46 current resolution, the pending rules approved by this concurrent resolu-
 47 tion shall become effective on July 1, 2026.

48 BE IT FURTHER RESOLVED that the pending rules contained in the following
 49 dockets shall become effective upon adjournment sine die of the Second Regu-
 50 lar Session of the Sixty-eighth Idaho Legislature:

1 (1) IDAPA 18.04.15, Department of Insurance, Rules Governing Short-
2 term Health Insurance Coverage, Docket No. 18-0415-2501, the entire docket;

3 (2) IDAPA 24.39.50, Division of Occupational and Professional Li-
4 censes, Rules of the Public Works Contractors License Board, Docket No.
5 24-3950-2501, the entire pending rule docket;

6 (3) IDAPA 57.01.01, Sexual Offender Management Board, Rules of the Sex-
7 ual Offender Management Board, Docket No. 57-0101-2501, the entire docket;
8 and

9 (4) IDAPA 58.01.08, Department of Environmental Quality, Rules for
10 Public Drinking Water Systems, Docket No. 58-0108-2502, the entire docket.